

October 18, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 6518
(ELEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Class 3 and Division 4.2 and 4.3 materials in steel portable tanks or cylinders. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101, 173.181, 173.187, 173.201, 173.202, 173.203, 173.211, 173.212, 173.241, 173.242, 173.243, and 173.244 in that these sections do not authorize the packaging listed in paragraph 7, except as specified herein.
5. BASIS: This special permit is based on the application of Union Carbide Corporation dated October 22, 2003, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquids (including those with subsidiary risk, as authorized in § 172.101)	3	As appropriate	I, II or III
Water-reactive solid, n.o.s.	4.3	UN2813	I, II or III
Water-reactive solid, toxic n.o.s.	4.3	UN3134	I, II or III
Water-reactive solid, flammable, n.o.s.	4.3	UN3132	I, II or III
Pyrophoric liquids, organic, n.o.s.	4.2	UN2845	I
Pyrophoric liquid, inorganic, n.o.s.	4.2	UN3194	I
Pyrophoric metals, n.o.s. <u>or</u> Pyrophoric alloys, n.o.s.	4.2	UN1383	I
Pyrophoric solids, organic, n.o.s.	4.2	UN2846	I
Pyrophoric solid, inorganic, n.o.s.	4.2	UN3200	I

7. SAFETY CONTROL MEASURES: Prescribed packagings are:

a. Non-DOT specification steel portable tanks having a minimum design pressure of 175 pounds per square inch and built in compliance with DOT Specification 51 except each tank has been inspected and stamped by a competent representative of the Swedish Pressure Vessel Commission rather than ASME. Safety relief devices must communicate with the vapor space for each tank. Maximum gross weight is 20,000 pounds.

b. Twenty-one English-built steel portable tanks, the subject of applicant's letters dated July 15, November 5, 1974, and March 26, 1990 and supporting data on file with the Office of Hazardous Materials Exemptions and Approvals

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(OHMEA). New construction after May 1, 1991 must conform with § 178.245, except corresponding drawings and calculations must be submitted to the OHMEA prior to first shipment of new tanks. For these tanks the following limitations apply:

- (1) Maximum gross weight: 20,000 pounds.
- (2) Maximum allowable working pressure: 341 psig.
- (3) Fusible plug must be located in the vapor space when the tank is fully loaded, melting point range: 338°F - 388°F.
- (4) Minimum service temperature: 0°F.

c. In addition to the containers described in paragraphs 7.a. and 7.b., pyrophoric or water reactive solids may be packaged in DOT Specification 51 portable tanks (§ 178.245) or in DOT Specification 39, 4B240, 4BA240, 4BW240 or 4E240 cylinder.

d. Pyrophoric solids must be maintained under a nitrogen blanket during transport. Should the nitrogen feeder line rupture, the portable tank must be so equipped to prevent ingress of air.

e. Each tank must:

- (1) be visually inspected prior to shipment to insure that it has not been damaged during loading; and
- (2) reinspected and retested once every five years in accordance with § 173.32(e) as prescribed for DOT Specification 51 portable tanks.

8. SPECIAL PROVISIONS:

a. The requirement for marking the technical name of the hazardous material on the outside of the tank for export shipments is waived.

b. Motor carriers used to transport packages offered in accordance with the terms of this special permit must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

- c. Before transportation in an empty condition, each tank must be emptied of its liquid content. In addition, the vapor pressure must be so reduced as to avoid the possibility of venting en route.
 - d. Rear end protection for the motor vehicle must be provided to meet the requirements of § 178.345-8(d) and 393.86.
 - e. Each portable tank must be secured to the motor vehicle in conformance with the requirements of §§ 393.100 through 393.106.
 - f. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 6518".
 - g. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
 - h. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - i. Packagings permanently marked 'DOT-E 6518', prior to October 1, 2006 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2006, must be marked 'DOT-SP 6518'.
 - j. Shipping papers displaying 'DOT-E 6518' may continue to be used until October 1, 2006, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODEL REQUIREMENTS:
- a. A current copy of this special permit must be carried aboard each vessel or motor vehicle used to transport packages covered by this special permit.

b. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:"

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)-"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

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writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.

A handwritten signature in blue ink, appearing to read "R. Ryan Foster" or similar, with a stylized flourish.

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: kah